

Mohd. Ramzan @ Rajan Ali v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 11 March 2014 · WRIT - C No. 14982 of 2014 · **Writ disposed of; competent authority directed to decide the reconnection and assessment application under s.126 read with clause 6.8 within two months, without examining merits.**

HEADNOTE

Where theft was alleged and an FIR lodged, a writ seeking a direction to decide an application for reconnection and restoration of supply (LMV-6 in place of LMV-2) and for assessment of charges was disposed of without merits, directing the competent authority under Section 126 of the Electricity Act, 2003 read with Clause 6.8 of the Electricity Supply Code, 2005 to decide the application within two months.

FACTUAL SUMMARY

Mohd. Ramzan alias Rajan Ali faced an allegation of electricity theft and an FIR had been lodged. He approached the High Court seeking a direction to decide his application for reconnection and restoration of supply at LMV-6 load in place of LMV-2, along with assessment of electricity charges. After hearing counsel for the petitioner and the Electricity Department, the Division Bench did not examine the merits of the claim.

HOLDING-UNITS

INTERPLAY · EA2003::126

reconnection and assessment after alleged theft

HOLDING

A grievance seeking decision of an application for reconnection and restoration of supply and for assessment of electricity charges, where theft is alleged and an FIR has been lodged, is to be redressed by the competent authority under Section 126 of the Electricity Act, 2003 read with Clause 6.8 of the Electricity Supply Code, 2005; the writ court will not examine merits and may dispose of the petition by directing that authority to decide the application within a stipulated time. ¶ 1

PRINCIPLE TAGS

opportunity-before-final-assessment Where theft was alleged and an FIR lodged, a writ seeking a direction to decide an application for reconnection and restoration of supply (LMV-6 in place of LMV-2) and for assessment of charges was disposed of without merits, directing the competent authority under Section 126 of the Electricity Act ¶ 1

s126-procedural-strictness-notice-and-hearing Where theft was alleged and an FIR lodged, a writ seeking a direction to decide an application for reconnection and restoration of supply (LMV-6 in place of LMV-2) and for assessment of charges was disposed of without merits, directing the competent authority under Section 126 of the Electricity Act ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAIM FOR RECONNECTION AT LMV-6 IN PLACE OF LMV-2 AND OF THE ASSESSMENT OF ELECTRICITY CHARGES

Court expressly declined to go into the merits and remitted the application to the competent authority under s.126 read with clause 6.8. ¶ 1

